

HOUSE No. 5219

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 12, 2026.

The committee on Environment and Natural Resources, to whom was referred the petition (accompanied by bill, House, No. 1003) of Joan Meschino, David M. Rogers and others for legislation to establish a drought management task force, reports recommending that the accompanying bill (House, No. 5219) ought to pass.

For the committee,

CHRISTINE P. BARBER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to maintaining adequate water supplies through effective drought management.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 21A of the General Laws is hereby amended by inserting after section 2A the
2 following section:-

3 Section 2B. (a) There shall be within the office a drought management task force. The
4 task force shall consist of: the secretary or a designee, who shall serve as co-chair; the director of
5 the Massachusetts emergency management agency or a designee, who shall serve as co-chair; the
6 commissioner of agricultural resources or a designee; the commissioner of conservation and
7 recreation or a designee; the commissioner of environmental protection or a designee; the state
8 fire marshal or a designee; the commissioner of fish and game or a designee; the commissioner
9 of public health or a designee; the commissioner of public utilities or a designee; the executive
10 director of the Massachusetts Water Resources Authority or a designee; the executive director of
11 the Massachusetts Association of Health Boards, Inc.; the executive director of the
12 Massachusetts Rivers Alliance, Inc., or a designee; the executive director of the Massachusetts
13 Water Works Association Inc.; and the executive director of the Water Supply Citizens advisory
14 committee to the Massachusetts Water Resources Authority. The co-chairs may invite officials

from federal agencies to provide scientific and technical input and shall have joint responsibility for coordinating the task force. The task force shall meet not less than monthly when drought conditions exist. The task force shall be staffed by the director of water policy, appointed by the Secretary, and by staff to the Water Resources Commission.

(b) The task force shall: (i) assist in collecting and assessing technical information; (ii) facilitate coordination and communication among task force members, agencies and the public; and (iii) provide recommendations to the secretary, the secretary of public safety and security and the governor on the existing drought level and any proposed responses to such drought level. The task force shall also make recommendations for the end of a drought or the reduction of the drought level or for the commencement or cessation of a drought declaration.

(c) The office, with assistance from the task force and approval by the Water Resources Commission, shall maintain and periodically update a statewide drought management plan that protects public health, public safety, and the environment and includes at a minimum (i) the approach and methods for collecting and assessing technical information (ii) assessment of drought levels and process for determining a drought (iii) addresses drought preparedness and response protocol to drought conditions and (iv) coordination and communication among task force members, agencies and the public. The task force may create and maintain a map depicting subregions consistent with the major basins. The task force may update the statewide drought management plan at any time; provided, however, that the plan shall be reviewed not less than every 5 years and updated not less than every 10 years; provided further, that the drought management plan shall be approved by the water resources commission after a public review and comment period.

(d) The secretary is authorized to declare a drought upon consideration of the recommendations of the task force. The secretary may order water conservation measures, including limits on nonessential outdoor water use, based on the severity of drought in drought regions or basins to protect public health, safety or the environment. Such water conservation measures shall apply to all water users within a drought region or basin unless otherwise determined by the secretary with prior notice to the task force.

(e) Notwithstanding section 27C of chapter 29 or any other general or special law, ordinance, by-law, rule or regulation to the contrary, cities and towns shall enforce water conservation restrictions issued by the secretary to the fullest extent permitted by law.

(f) The secretary shall issue guidance and recommended best practices for cities and towns to implement and enforce measures ordered under subsection (d) and may provide grants or technical assistance to support cities and towns with communication and enforcement for water conservation measures. Cities and towns shall designate a point of contact for communication of information related to water conservation and drought conditions.